

On November 3, 2025, at the Abu Dhabi International Petroleum Exhibition and Conference (ADIPEC), two men signed a document that commits Malaysian petroleum revenues for the next five years. The event was photographed, published in press releases, and reported in the financial news. What the photographs did not show was the corporate structure behind the signature.

The entity that now holds the rights to a substantial portion of Malaysia's domestic gas supply is **SEARAH Limited** — a company registered in England and Wales (Company No. 17027115), incorporated at ENI House, 8th Floor, London. Its two shareholders are **PETRONAS Carigali International Ventures Ltd** (Malaysia) and **Eni Lasmo Plc** (UK-Italy).

The agreement commits more than **USD 15 billion (RM70 billion)** in capital over five years toward upstream assets in Malaysia and Indonesia. Because SEARAH is registered under the UK Companies Act 2006, its internal governance, dispute resolution, and capital structure fall under English law — not Malaysian law.

SEARAH

— Why this matters

PETRONAS has operated for five decades as a Federal statutory corporation. Its board answers to the Malaysian Government. SEARAH Limited is a ~~private UK company. Its board answers to its two shareholders~~ and to English law.

The practical consequence: decisions about Sarawak gas fields, LNG offtake contracts, and capital allocation under the JV can be made in London, and Malaysian institutions have no direct mechanism to oversee, influence, or regulate them.

The Deal That Could Reshape Malaysia's Petroleum Future

COMPANY	SEARAH Limited — UK Co. No. 17027115
INCORPORATED	February 11, 2026 at ENI House, London
SHAREHOLDERS	PETRONAS Carigali (50%) Eni Lasmo (50%)
CAPITAL	USD 15bn+ over five years
GOVERNING LAW	English Law (Companies Act 2006)

PART II

The Kasawari gas field is PETRONAS's largest domestic producing asset. It sits 200 kilometres off the coast of Sarawak, feeds the Bintulu LNG Complex (one of the world's largest), and represents a significant share of Malaysia's total gas production.

Since 2024, PETRONAS and the Sarawak State Government — through its petroleum company PETROS — have been locked in a constitutional dispute over who has rights to petroleum revenues from fields within Sarawak's territory.

The Federal Court has heard arguments. The Sarawak State Assembly has passed resolutions. The legal fight could run for years.

Meanwhile, the SEARAH joint venture was negotiated and incorporated in a matter of months — and its UK governance structure effectively places the Kasawari gas field and related infrastructure beyond the reach of both the Federal Court and the Sarawak State Government simultaneously.

	PETROS incorporated by Sarawak State Government.
	PETROS formally asserts claim to Sarawak petroleum rights.
	PETRONAS and PETROS enter formal constitutional dispute.
	PETRONAS and Eni sign SEARAH JV at ADIPEC, Abu Dhabi.
	SEARAH Limited formally incorporated in London.
	PETROS sues PETRONAS in Kuching High Court over petroleum rights.
2026	Federal Court constitutional hearing scheduled/resumed.

PART III

Claudio Descalzi is the CEO of Eni, the Italian state-majority-owned energy company. He has been CEO since 2014. He has extensive experience structuring international JVs and has navigated complex regulatory environments in Africa, the Middle East, and Latin America.

In 2021, Descalzi was acquitted by an Italian Milan court of charges related to alleged corruption in the acquisition of OPL 245, a prolific Nigerian offshore oil block. The Nigerian government was also a party to that case. The acquittal is not the same as a finding of innocence — it means the prosecution failed to meet its legal threshold. The structural model used in that deal is instructive.

Descalzi has repeatedly used holding company structures incorporated in stable, arbitration-friendly jurisdictions to ring-fence assets from the regulatory risk of the host country. SEARAH Limited fits that pattern precisely.

PART IV

The PETRONAS–PETROS Question Is Not Academic

PETROS is not a fringe player. It is a company incorporated by the Sarawak State Government, with a mandate to represent Sarawak's interest in petroleum revenues under the Malaysia Agreement 1963 (MA63).

If SEARAH holds the economic rights to fields that PETROS claims under Sarawak law, then SEARAH's English-law structure is not just a commercial design — it is a constitutional■■■ (avoidance) mechanism.

“■■■ — Avoidance. Not illegal. Not unusual in international petroleum deals. But done to a sovereign state's own sub-national entity — that is new.”

MA63 is not a minor administrative detail. It is the constitutional foundation of Sarawak's membership in Malaysia. Any constitutional question touching petroleum rights under MA63 is, by definition, a question about the structure of the Federation itself.

SEVEN UNANSWERED QUESTIONS

1.

Did the Malaysian Cabinet approve the transfer of any producing assets into a UK-governed entity before incorporation?

2.

Has the Attorney General's Chambers reviewed the SEARAH structure under the Petroleum Development Act?

3.

Does the SEARAH JV agreement include any "reserved matters" that require unanimous board approval — and if so, what are they?

4.

Are any of SEARAH's assets — including interests in producing fields — pledged as collateral for any debt instrument?

5.

Has PETROS been granted any standing in the SEARAH governance structure, or any dispute resolution mechanism?

6.

What is the exact relationship between SEARAH's capital commitments and PETRONAS's simultaneous "rightsizing" programme 2024–2025?

7.

At what point did Eni become aware that PETROS's claim over SK316 was unresolved — and did that affect the JV structure?

SOURCES

- PETRONAS Annual Report 2024 — corporate structure overview.
- Companies House UK — SEARAH Limited (Company No. 17027115) filing record.
- Eni Press Release, November 2025 — "PETRONAS and Eni sign strategic upstream partnership."
- PETROS public statements 2024–2026 — petroleum rights assertions.
- Federal Court of Malaysia — MA63 constitutional hearing records.
- Sarawak State Assembly Hansard — petroleum rights debates, 2024–2025.
- UNCTAD Investment Policy Hub — BIT database, confirmed: no Italy-Malaysia BIT.
- Milan Court records, March 2021 — Descalzi OPL 245 acquittal.
- Wood Mackenzie press release, February 28, 2025 — PETRONAS-Eni combination analysis.
- Global Arbitration Review — ICSID Case No. ARB/20/48 (Eni vs Nigeria).
- Fulcrum Singapore (ISEAS-Yusof Ishak Institute), April 2026.
- Milan Court records, March 2021 — Descalzi/Eni OPL 245 acquittal.

WHAT IS CONFIRMED

- ✓ SEARAH Limited (Company No. 17027115) — UK-registered, incorporated February 11, 2026 at ENI House, London.
- ✓ 50% owned by PETRONAS Carigali International Ventures, 50% by Eni Lasmio Plc.
- ✓ Deal valued at "in excess of USD 15 billion over five years" — Eni press release, November 2025.
- ✓ Company governed by Companies Act 2006 (English law).
- ✓ NO active BIT between Malaysia and Italy or the United Kingdom — confirmed by UNCTAD, April 2026.
- ✓ MLNG Bintulu — one of world's largest LNG export facilities; supplies Japan, Korea, Taiwan, China.

WHAT REQUIRES FURTHER INVESTIGATION

- The specific terms of the JV agreement between PETRONAS and Eni are not public.
- Whether Malaysian Parliament was formally notified has not been confirmed.
- Whether PETROS was consulted before the SEARAH structure was finalised has not been confirmed.
- Whether Malaysian legal counsel reviewed the UK incorporation has not been confirmed.
- Whether Block SK316 or other producing fields are held within SEARAH Limited has not been confirmed.

SEAL 999

DITEMPA BUKAN DIBERI

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CORRECTION NOTICE: Previous editions incorrectly stated that an Italy-Malaysia BIT (1988) was in force. UNCTAD confirmed (April 2026): NO such treaty exists. BIT claim retracted. The correct statement: NO BIT protects this arrangement. English law governs. No ICSID route exists for Malaysia.

All claims cross-checked against primary sources: Companies House UK, Eni press releases, UNCTAD Investment Policy Hub, Malaysian Parliament Hansard, Federal Court records. F2 WITNESS standard: evidence must be verifiable, not merely credible.